

Bearcroft, for the defendant, was proceeding to make a formal objection to the action, but he was stopped by Lord Kenyon, who said it would be prejudicial rather than advantageous to the defendant to nonsuit the plaintiff in this action, for that it was a constant rule in the Court of Chancery, to make the defendant pay all costs when he defeated an action brought under the direction of that Court, by a formal objection, and though this action was not specifically directed by the Court, still the consequence would be the same to the defendant.

Verdict for the plaintiff.

[101] AFTER TRINITY TERM, 31 GEORGE III. 1791.

1791 Friday, July 15. At Guildhall

LONGCHAMPS DEM. EVITTS v FAWCETT.

(In an ejectment between two persons (both claiming under a demise from the same person) the landlord, who has become a bankrupt, may be a witness to prove that the premises in dispute were not included in the first lease)

The lessor of the plaintiff claimed the premises in question under a lease from one Andrews, who had since become a bankrupt. The defendant also claimed under a lease from Andrews, but the lease granted to him was of a date subsequent to that under which the lessor of the plaintiff claimed.

There being an ambiguity in the words of the first deed, the defendant called Andrews as a witness, to prove that the premises in dispute were not included in the premises demised by that deed (a)¹

On an objection being made to his competency, [102] Lord Kenyon said, that as he had parted with the reversion, by the assignment under the commission, he was an admissible witness, but that he should have thought him incompetent, had he still been entitled to the reversion.

He was accordingly (after releasing his allowance and surplus) permitted to give evidence; and on his evidence the defendant obtained a verdict (a)²

HARRIS v. WATSON.

(No action will lie at the suit of a sailor on a promise of the captain to pay him extra wages in consideration of his doing more than the ordinary share of duty in navigating the ship)

In this case the declaration stated, that the plaintiff being a seaman on board the ship "Alexander," of which the defendant was master and commander, and which was bound on a voyage to Lisbon whilst the ship was on her voyage, the defendant, in consideration that the plaintiff would perform some extra work, in navigating the ship, promised to pay him five guineas over and above his common wages. There were other counts for work and labour, &c

The plaintiff proved that the ship being in danger, the defendant, to induce the seamen to exert themselves, made the promise stated in the first count

[103] Lord Kenyon — If this action was to be supported, it would materially affect the navigation of this kingdom. It has been long since determined, that when the freight is lost, the wages are also lost (a)³. This rule was founded on a principle of policy, for if sailors were in all events to have their wages, and in times of danger entitled to insist on an extra charge on such a promise as this, they would in many cases suffer a ship to sink, unless the captain would pay any extravagant demand they might think proper to make.

The plaintiff was nonsuited (b).

(a)¹ In the case of *Doe dem Freeland* against *Burt*, 1 T Rep 701, the Court held that the lessor was not estopped by his deed from going into evidence to shew the extent of the premises demised

(a)² Vide *Bell v Harwood*, 3 Term Rep. 308, where the lessor was admitted as a witness.

(a)³ *Harman v. Bawden & Al'*, 3 Bur 1844, *Abernethy v. Landale*, Doug 520.

(b) Nor will such an action lie where the contract is made on shore, and the extra work is occasioned by the desertion of part of the crew, *Stilk v Meyrick*, 6 Esp. 129, and 2 Camp. 317, where Lord Ellenborough approved of the decision in the principal case.